

STATE OF NEW YORK

8512--B

2025-2026 Regular Sessions

IN SENATE

September 24, 2025

Introduced by Sens. KRUEGER, BRISPORT, FAHY, FERNANDEZ, GONZALEZ, GOUNARDES, HARCKHAM, HINCHEY, JACKSON, MAY, MAYER, SALAZAR, SERRANO -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law and the executive law, in relation to portable solar generation devices

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Solar Up Now NY Act".
3 § 2. Paragraph (d) of subdivision 1 of section 66-j of the public
4 service law, as amended by chapter 253 of the laws of 2013, is amended
5 and a new paragraph (j) is added to subdivision 1 to read as follows:
6 (d) "Solar electric generating equipment" means a photovoltaic system
7 (i) (A) in the case of a residential customer (other than a farm utiliz-
8 ing a residential meter), with a rated capacity of not more than twen-
9 ty-five kilowatts; (B) in the case of a customer who owns or operates a
10 farm operation as such term is defined in subdivision eleven of section
11 three hundred one of the agriculture and markets law utilizing a resi-
12 dential meter with a rated capacity of not more than one hundred kilo-
13 watts; and (C) in the case of a non-residential customer, with a rated
14 capacity of not more than two thousand kilowatts; and (ii) that is manu-
15 factured, installed, and operated in accordance with applicable govern-
16 ment and industry standards, that is connected to the electric system
17 and operated in conjunction with an electric corporation's transmission
18 and distribution facilities, and that is operated in compliance with any
19 standards and requirements established under this section. Solar elec-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13786-07-6

1 tric generating equipment shall not include a portable solar generation
2 device.

3 (j) "Portable solar generation device" means a photovoltaic system and
4 associated equipment that:

5 (i) is designed to be connected to a building's electrical system
6 through a standard electrical outlet;

7 (ii) is limited to supplying a maximum aggregate continuous AC invert-
8 er nameplate output of not more than one thousand two hundred watts per
9 utility account to the utility electric grid;

10 (iii) is listed or certified by underwriters laboratories or another
11 nationally recognized testing laboratory either: (A) as a complete plug-
12 in photovoltaic system to a standard such as UL 3700 or any successor or
13 equivalent standard; or (B) to a combination of standards that together
14 evaluate plug-in photovoltaic system safety and utility-interactive
15 inverter performance for grid-parallel operation and anti-islanding
16 protections; and

17 (iv) is installed and operated in accordance with the New York state
18 fire prevention and building code and manufacturer instructions.

19 § 3. Subdivision 7 of section 66-j of the public service law is renum-
20 bered subdivision 8 and a new subdivision 7 is added to read as follows:

21 7. Portable solar generation device. Notwithstanding any other
22 provision of law, unless the owner of a portable solar generation device
23 shall choose to voluntarily enter into an interconnection or net meter-
24 ing agreement:

25 (a) A portable solar generation device shall not be subject to inter-
26 connection or net metering requirements. Any energy exported to the
27 utility electric grid shall be uncompensated unless the customer volun-
28 tarily enters a net metering or other compensation agreement.

29 (b) An electric corporation may not require a customer using a port-
30 able solar generation device to:

31 (i) obtain the electric corporation's approval before installing or
32 using the device;

33 (ii) pay any fee or charge related to the device or for feeding energy
34 back into the utility electric grid; or

35 (iii) install any additional controls or equipment beyond what is
36 integrated into the device.

37 (c) An electric corporation shall not be liable for any damage or
38 injury caused by a portable solar generation device.

39 (d) Within thirty days of installing a portable solar generation
40 device, the owner of such device shall notify the electric corporation
41 serving the building in which such device will be installed. Within
42 thirty days of the effective date of this subdivision, every electric
43 corporation shall develop and make available on the electric corpo-
44 ration's website a simple notification form, which shall require only
45 the following information:

46 (i) the customer's name and contact information;

47 (ii) the service address and utility account number associated with
48 the address at which the device will be installed;

49 (iii) the device make and model; and

50 (iv) the device rated size.

51 § 4. Section 378 of the executive law is amended by adding a new
52 subdivision 21 to read as follows:

53 21. Within one year of the effective date of this subdivision, irre-
54 spective of any system standard established by any testing laboratory,
55 the state uniform fire prevention and building code shall be optimized
56 to allow for portable solar generation devices, as defined in section

- 1 sixty-six-j of the public service law, to be connected to a building's
- 2 wiring through an electrical outlet. For devices smaller than a thresh-
- 3 old of no less than three hundred ninety-one watts, the code shall not
- 4 require any changes to the building's premises wiring.
- 5 § 5. This act shall take effect immediately.